ORDINANCE NO. 529

AN ORDINANCE AMENDING ORDINANCE NO. 396, and 513 REGULATING THE ACTIVITIES OF DANGEROUS DOGS AND POTENTIONALLY DANGEROUS DOGS AND FOR OTHER PURPOSES.

BE IT ORDAINED BY THE CITY COUNCIL OF RECTOR, ARKANSAS, as follows:

SECTION 1: Section 1 of Ordinance 513 shall be amended as follows:

Definitions.

The following words and phrases shall be added, for the purpose of this ordinance, have the following meanings:

Vicious Dog. A vicious dog will be determined in one of two ways:

1) The City of Rector has received a complaint of the dog's propensity, tendency, or disposition of attack or cause injury or otherwise endanger and said complaint has been logged by the Rector Police Department. The City of Rector will then send notification to the owner of the animal notifying the owner of the complaint. If an additional complaint is received, during the next 12-month period, the owner of the animal will be cited with a violation of this ordinance and the animal will be a vicious dog under this ordinance.

OR

2) A complaint is made to the Rector Police Department whereby an animal has attacked, bitten, or caused injury to another persons, domestic animals and/or other property.

SECTION 2: Section 3 of ordinance 513 shall be amended as follows:

The following words and phrases shall be added, for the purpose of this ordinance, have the following meanings:

Regulations for keeping vicious dogs.

1) No person owning, harboring or having the care of a vicious dog shall allow or permit such dog to go unconfined on the premises of such person, nor shall the person allow or permit such animal to be loose unless it is securely leashed with a leash no long than four (4) feet in length.

2) No person shall permit a vicious dog to be kept on a chain, rope or other type of leash outside its kennel or pen unless that person is in physical control of the leash. A vicious dog may not be leashed to an inanimate object such as trees, posts, buildings, etc., while the dog is unattended. In addition, all vicious dogs on a leash outside their kennel or pen must be muzzled by a muzzling devise sufficient to prevent such animals from biting persons or other animals.

3) No person shall permit a vicious dog to be kept in a kennel or a fence unless said kennel or fence is kept in the backyard of the residence.

SECTION 3: Section 4 of Ordinance 513 shall be amended to read as follows:

The following words and phrases shall be added, for the purpose of this ordinance, have the following meanings:

Restitution: Any person or animal that is a victim(s) of a vicious dog, under the terms of this ordinance, shall be entitled to restitution for the out of pocket expense, medical or otherwise, that the victim(s) incurred as a result of the violation.

Termination of Animal: The District Court Judge does have the discretion to have the vicious dog's life terminated depending upon the circumstances of the violation. If this is decided, it will be done at the violator's expense.

SECTION 4: All ordinances or parts of ordinances in conflict herewith are hereby repealed.

SECTION 5: In order to apply these provisions to the citizens of Rector, Arkansas, as soon as possible, an emergency is declared to exist and this Ordinance shall be in full force and effect from and after its passage, approval and publication as required by law.

DATED this 5th day of May, 2008.

CITY OF RECTOR, ARKANSAS

By: Ruth E. King
Mayor

ATTEST:

Lowell D. McKinney
Recorder/Treasurer